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MSL FBO TIWANNA B HAYES  
3651 PEACHTREE PARKWAY SUITE E339  
SUWANEE GA 30024-6034

2439:006  
March 20, 2025  
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006014 MS1NOA01 018040



Your Financial Advisor

Thomas/Johnson  
3280 PEACHTREE RD NE SUITE 1900  
ATLANTA, GA 30305

Customer Service: 1-866-324-6088

Account Number 308 209296

Name Reported to the IRS: Tiwanna B Hayes  
MSL FBO TIWANNA B HAYES  
3651 PEACHTREE PARKWAY SUITE  
E339  
SUWANEE GA 30024-6034

Instructions for the Shareholder

Section references are to the Internal Revenue Code.

Reporting Information

Shareholder's identifying number. For your protection, Form 2439 may show only the last four digits of your identifying number (social security number (SSN), etc.). However, the RIC or REIT has reported your complete identifying number to the IRS.

**Box 1a.** This amount is your total undistributed long-term capital gain from your regulated investment company (RIC) or real estate investment trust (REIT). Report the total amount as a long-term gain on the appropriate Schedule D. For example, individuals report this amount on line 11, column (h), of Schedule D (Form 1040). Estates and trusts report this amount on Schedule D (Form 1041).

Corporate shareholders report this amount in Part II of Form 999. See Form 999, Schedule D (Form 1120), and the related instructions for details.

If there is an amount in box 1b, 1c, or 1d, special instructions apply for entering those amounts on the appropriate Schedule D. See Undistributed Capital Gains in the Schedule D (Form 1040) and Schedule D (Form 1041) instructions.

**Box 1b.** This amount is the unrecaptured section 1250 gain. Individual filers report this amount on line 11 of the *Unrecaptured Section 1250 Gain Worksheet* in the Schedule D (Form 1040) instructions for 2021 or the applicable line of the worksheet in the instructions for the current year. Estates and trusts use this amount to complete the *Unrecaptured Section 1250 Gain Worksheet* in the Schedule D (Form 1041) instructions.

**Box 1c.** This amount applies to the portion of the amount in box 1a attributable to a section 1202 gain (sale of qualified small business stock). Individual filers, see *Exclusion of Gain on Qualified Small Business (QSB) Stock* in the Schedule D (Form 1040) instructions. Estates and trusts, see *Exclusion of Gain on Qualified Small Business (QSB) Stock (Section 1202)* in the Schedule D (Form 1041) instructions.

**Box 1d.** This amount is the collectibles gain (28% rate gain), portion of the amount in box 1a. Individual filers enter this amount on line 4 of the *28% Rate Gain Worksheet* in the Schedule D (Form 1040) instructions for 2021 or the applicable line of the worksheet in the instructions for the current year. Estates and trusts use this amount to complete the *28% Rate Gain Worksheet* in the Schedule D (Form 1041) instructions.

**Box 2.** This amount is the tax paid by the RIC or REIT on the undistributed long-term capital gains shown in box 1a. You can apply for a refund or credit of this tax as follows.

**Individuals, Nonresident Aliens, and Estates and Trusts.** See line 13a of Schedule 3 (Form 1040) of the 2021 form or the applicable line on the current year form, or Schedule G, line 16a of Form 1041 of the 2021 form or the applicable line on the current year form, and the related instructions.

**Corporations (other than S Corporations).** See Schedule J, line 20a of Form 1120 of the 2021 form or the applicable line on the current year form, or line 5f of Form 1120-F of the 2021 form or the applicable line on the current year form, and the related instructions. All other corporations report this amount on the line designated as "Credit for tax paid on undistributed capital gains."

**S Corporations and Partnerships.** See the Specific Instructions for Schedules K and K-1, Part III (Forms 1120S and 1065) for details on reporting each item to the shareholders and partners.

**Exempt Organizations and Certain Trustees.** See the instructions for Form 990-T if it is filed by:

1. Organizations exempt from tax under section 501(a) filing Form 990-T to claim their refund of income tax paid on undistributed long-term capital gains, or
2. Trustees for individual retirement arrangements (IRAs) described in section 408 (including accounts described in section 408(h)) filing a single composite Form 990-T to claim the refund referred to above.

**Nominees.** If you are not the actual owner of the shares for which this form is issued, you must do the following.

1. Complete Copies A, B, C, and D of Form 2439 for each owner. The total undistributed long-term capital gains entered in box 1a, the amounts entered in boxes 1b, 1c, and 1d and the tax shown in box 2 on the Form 2439 for each owner must agree with the amounts on Copy B that you received from the RIC or REIT.
2. Enter your name as "Nominee" and your address in the block for the RIC's or REIT's name and address, and the RIC's or REIT's name and address in the same block.
3. Write "Nominee" in the upper right corner of the Copy B you received from the RIC or REIT and attach it to the Copy A you completed.
4. File the Copy B you received (with an attached Copy A) with the Internal Revenue Service Center where you file your income tax return.
5. Give the actual owner Copies B and C of the forms you complete.
6. Copy D is to be maintained by the RIC or REIT.

A nominee has 90 days after the close of the RIC's or REIT's tax year to complete items 1 through 5 above. However, a nominee acting as a custodian of a unit investment trust described in section 851(f)(1) has 70 days. A nominee who is a resident of a foreign country has 150 days.

☐ VOID ☐ CORRECTED

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|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------|
| Name, address, and ZIP code of RIC or REIT<br>Nominee - Morgan Stanley Capital Management, LLC<br>Morgan Stanley Smith Barney, LLC<br>Kimco Realty Corporation<br>500 North Broadway, Suite 201<br>Jericho, NY 11753 | OMB No. 1545-0145<br><b>2024</b><br>Form <b>2439</b>                   | <b>Notice to Shareholder of Undistributed Long-Term Capital Gains</b><br>For calendar year 2024, or other tax year of the regulated investment company (RIC) or the real estate investment trust (REIT) beginning 01/01/2024, and ending 12/31/2024. |                                                                                                                                                 |
| Identification number of RIC or REIT<br>13-2744380                                                                                                                                                                   | <b>1a</b> Total undistributed long-term capital gains<br>\$1.08        |                                                                                                                                                                                                                                                      | <b>Copy B</b><br><br>Attach to the shareholder's income tax return for the tax year that includes the last day of the RIC's or REIT's tax year. |
| Shareholder's identifying number<br>XXX-XX-5488                                                                                                                                                                      | <b>1b</b> Unrecaptured section 1250 gain<br>\$0.00                     |                                                                                                                                                                                                                                                      |                                                                                                                                                 |
| Shareholder's name, address, and ZIP code<br>Tiwanna B Hayes<br>MSL FBO TIWANNA B HAYES<br>3651 PEACHTREE PARKWAY SUITE E339<br>SUWANEE GA 30024-6034                                                                | <b>1c</b> Section 1202 gain<br>\$0.00                                  | <b>1d</b> Collectibles (28%) gain<br>\$0.00                                                                                                                                                                                                          |                                                                                                                                                 |
|                                                                                                                                                                                                                      | <b>2</b> Tax paid by the RIC or REIT on the box 1a gains<br><br>\$0.23 |                                                                                                                                                                                                                                                      |                                                                                                                                                 |



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Instructions for the Shareholder

Section references are to the Internal Revenue Code.

Reporting Information

**Box 1a.** This amount is your total undistributed long-term capital gain from your regulated investment company (RIC) or real estate investment trust (REIT).  
Report the total amount as a long-term gain on the appropriate Schedule D. For example, individuals report this amount on line 11, column (h), of Schedule D (Form 1040). Estates and trusts report this amount on Schedule D (Form 1041).  
Corporate shareholders report this amount in Part II of Form 994. See Form 994, Schedule D (Form 1120), and the related instructions for details.  
If there is an amount in box 1b, 1c, or 1d, special instructions apply for entering those amounts on the appropriate Schedule D. See Undistributed Capital Gains in the Schedule D (Form 1040) and Schedule D (Form 1041) instructions.  
**Box 1b.** This amount is the unrecaptured section 1250 gain. Individual filers report this amount on line 11 of the *Unrecaptured Section 1250 Gain Worksheet* in the Schedule D (Form 1040) instructions. Estates and trusts use this amount to complete the *Unrecaptured Section 1250 Gain Worksheet* in the Schedule D (Form 1041) instructions.  
**Box 1c.** This amount applies to the portion of the amount in box 1a attributable to a section 1202 gain (sale of qualified small business stock). Individual filers, see *Exclusion of Gain on Qualified Small Business (QSB) Stock* in the Schedule D (Form 1040) instructions. Estates and trusts, see *Exclusion of Gain on Qualified Small Business (QSB) Stock (Section 1202)* in the Schedule D (Form 1041) instructions.  
**Box 1d.** This amount is the collectibles gain (28% rate gain), portion of the amount in box 1a. Individual filers enter this amount on line 4 of the *28% Rate Gain Worksheet* in the Schedule D (Form 1040) instructions. Estates and trusts use this amount to complete the *28% Rate Gain Worksheet* in the Schedule D (Form 1041) instructions.  
**Box 2.** This amount is the tax paid by the RIC or REIT on the undistributed long-term capital gains shown in box 1a. You can apply for a refund or credit of this tax as follows.

**Individuals, Nonresident Aliens, and Estates and Trusts.** See line 12a of Schedule 3 (Form 1040) or Schedule G, line 16a of Form 1041, and the related instructions.  
**Corporations (other than S Corporations).** See Schedule J, line 20a of Form 1120 or line 5f of Form 1120-F, and the related instructions.  
All other corporations report this amount on the line designated as "Credit for tax paid on undistributed capital gains."  
**S Corporations and Partnerships.** See the Specific Instructions for Schedules K and K-1, Part III (Forms 1120S and 1065) for details on reporting each item to the shareholders and partners.

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1. Complete Copies A, B, C, and D of Form 2439 for each owner. The total undistributed long-term capital gains entered in box 1a, the amounts entered in boxes 1b, 1c, and 1d and the tax shown in box 2 on the Form 2439 for each owner must agree with the amounts on Copy B that you received from the RIC or REIT.  
2. Enter your name as "Nominee" and your address in the block for the RIC's or REIT's name and address, and the RIC's or REIT's name and address in the same block.  
3. Write "Nominee" in the upper right corner of the Copy B you received from the RIC or REIT and attach it to the Copy A you completed.  
4. File the Copy B you received (with an attached Copy A) with the Internal Revenue Service Center where you file your income tax return.  
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6. Copy D is to be maintained by the RIC or REIT.  
A nominee has 90 days after the close of the RIC's or REIT's tax year to complete items 1 through 5 above. However, a nominee acting as a custodian of a unit investment trust described in section 851(f)(1) has 70 days. A nominee who is a resident of a foreign country has 150 days.

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|                                                                                                                                                                                                                      |                                                                        |                                                                                                                                                                                                                                                      |                                                 |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------|
| Name, address, and ZIP code of RIC or REIT<br>Nominee - Morgan Stanley Capital Management, LLC<br>Morgan Stanley Smith Barney, LLC<br>Kimco Realty Corporation<br>500 North Broadway, Suite 201<br>Jericho, NY 11753 | OMB No. 1545-0145<br><b>2024</b><br>Form 2439                          | <b>Notice to Shareholder of Undistributed Long-Term Capital Gains</b><br>For calendar year 2024, or other tax year of the regulated investment company (RIC) or the real estate investment trust (REIT) beginning 01/01/2024, and ending 12/31/2024. |                                                 |
| Identification number of RIC or REIT<br>13-2744380                                                                                                                                                                   | <b>1a</b> Total undistributed long-term capital gains<br>\$1.08        |                                                                                                                                                                                                                                                      | <b>Copy C</b><br><br>For shareholder's records. |
| Shareholder's identifying number<br>XXX-XX-5488                                                                                                                                                                      | <b>1b</b> Unrecaptured section 1250 gain<br>\$0.00                     |                                                                                                                                                                                                                                                      |                                                 |
| Shareholder's name, address, and ZIP code<br>Tiwanna B Hayes<br>MSL FBO TIWANNA B HAYES<br>3651 PEACHTREE PARKWAY SUITE E339<br>SUWANEE GA 30024-6034                                                                | <b>1c</b> Section 1202 gain<br>\$0.00                                  | <b>1d</b> Collectibles (28%) gain<br>\$0.00                                                                                                                                                                                                          |                                                 |
|                                                                                                                                                                                                                      | <b>2</b> Tax paid by the RIC or REIT on the box 1a gains<br><br>\$0.23 |                                                                                                                                                                                                                                                      |                                                 |